

quod the jurisdiction of the admiral shall extend only to things done super altum mare ; and it does not recite the whole statute ; nor, that it was in parliament : yet adjudged good, and affirmed in error : for, it cannot be a statute unless it be made in parliament ; and no body is bound to recite any more of a record than what is sufficient to induce the action : as in debt upon a judgment ; it is sufficient to recite only the judgment. 18 Jac. Cro. 567.

CASE XXXV. P. 14 Jac. B. R. Stanneries, Error, Fiat quod fieri consuevit.

An erroneous judgment is given in the Stannary courts for matters of the stannary : a writ of error does not lie, but an appeal to the vice-warden, and from him to the warden, and from him to the duke. But for collateral matters not concerning the stannaries, a writ of error lies in the King's Bench.

CASE XXXVI. P. 13 Jac. B. R. Entered. 13 Jac. Rot. 165, *Grange vers. Dewry*. Quare impedit, Brief al evesque, Judgment, Costs. 43 Ass. pl. 4. 29 Ass. pl. 14. 35 H. 6, 3. Br. Cases, 33. No person shall have error or attain, unless he be damaged. 2 Sand. 47. 8 Co. 58, &c., *Beecher's case*.

In quare impedit against an archbishop, bishop and others ; the archbishop and bishop plead that they claim nothing, but one as metropolitan, the other as ordinary ; the other defendants plead other pleas ; the plaintiff has judgment against the archbishop and bishop to have a writ to the bishop ; but in this judgment against them, there is an omission of the usual clause ; sed cesset executio quousque the other issues are tried ; and in truth no writ issued before the trial of the other issues ; the issues are found for the plaintiff ; he had judgment, affirmed in error. In this case the said omission was not erroneous ; for it was after judgment ; and if it be error, it is error in executione judicii : and in this case no writ of execution was sued out against them. And the plaintiff has no costs in the quare impedit : for the stat. of West. 2, cap. 5, [324] gives great damages in a quare impedit. In this case the plaintiff has his election to sue his writ to the bishop or to the metropolitan. The plaintiff in this writ of error sustained no damage by this omission, and a writ of error does not lie for the plaintiff, where he sustains no damage, unless where the King by an omission in point of judgment suffers a loss : as where the issue is found against the defendant, and the defendant is not amerced ; the defendant in this case shall have a writ of error for the King's loss : or where vi & armis is omitted in trespass or otherwise, or in ejectione firmæ, and it is found against the defendant ; the defendant shall have a writ of error : Br. Cases. 17 H. 8. 9 H. 6, 32. Costs in quare impedit are not recoverable after West. 2, cap. 5, for great damages are given for it where the plaintiff recovers : costs were recoverable in quare impedit before the said statute. A clerk admitted before the writ purchased was not removable at common law, although his patron had no right ; but if admitted after, he is removable unless there be a plenarty by the space of six months before the writ purchased.

CASE XXXVII. Mich. 11 Jac. B. R. *Bagge versus Slade*, Rot. 872. 5 Co. 117, *Pinnel's case*. Assumpsit, Consideration. Ex nudo pacto actio non oritur.

A. and B. are bound for a third person as sureties for him to pay 100l. to C. B. assumes to A. that if A. will pay the said 100l. to C. that he (B.) will pay him (A.) the moiety of it ; A. pays the 100l. to C. this is a good consideration : so adjudged for A. and affirmed in error. A. is bound in 1000l. to B. A. pays him 500l. in satisfaction of it ; it is not a satisfaction : but if upon th s, B. assumes to deliver the said bond to A. this is a good consideration. Any benefit to him who promises is a good consideration, and any prejudice, damage or labour sustained by him to whom the promise is made, is a good consideration.

CASE XXXVIII. Mich. 13 Jac. B. R. *Furrer versus Snelling*, Dyer, 55. Covenant, Debt, Miscasting. Superflua non nocent. Yel. 5.

Covenant for payment of rent of 20l. per annum, for four years and an half ; and for non-payment of 100l. according to the said covenant, the action is brought :

adjudged good, and affirmed in error: for in covenant damages only are to be recovered; and this surplus in miscomputing shall be abated: it is otherwise in debt for rent, where more is demanded than is due; for in this case the debt demanded only, is to be recovered.

CASE XXXIX. 3 Cr. 798. Mo. 472. 6 Co. 30 b., 31 a. Mich. 13 Jac. *Atkinson versus Buckle*. 5 Co. 22 b. *Hulling's case*. Office de Court, Notice, Lit. Estates sur Condition.

A. contracts with B. and assumes to him to deliver to him 100 quarters of barley on shipboard in such a port, viz. at Barton-Haven in com' Ebor'; and does not mention at what time it is to be carried thither, &c. A. assumes to B. to carry it, and to be at this port with it, and B. agrees to pay so much for the said quarters of barley; A. arrives with his boat there: A. is bound in this case to seek B. at the said haven, and to deliver to him the said hundred quarters, as aforesaid; A. does not perform this, although B. has [325] performed his promise, and was there ready to receive it: B. brings an action on this assumpsit; and it well lies. In the margin of the declaration of this action, civitas Ebor' is mentioned, and no county; and yet good: judged for B. the plaintiff, and affirmed in error. The judges ex officio take notice of every county; civitas Ebor' is a county: the place in this case is certain; the time uncertain; the law gives convenient time; and in this case B. after the said agreement came to the said port, and staid there a convenient time, and A. did not come, &c.

CASE XL. 12 Co. 73, S. C. Mich. 13 Jac. *Primislau's case against The Admiralty*. B. R. Prohibition.

The Admiral in his patent has granted to him bona piratar': resolved by all the judges, that the goods of pirates pass by this grant; and not piratical goods. So where a grant is de bonis felonum; if a felon steals goods, the grantee shall not have them; but the true and rightful owner shall; and the patentee shall have only the proper goods of the felon. The King shall have piratical goods if the owner be not known. In this case, the admiral ought to sue at common law; and not in the Admiralty court.

CASE XLI. Tr. 10 Jac. *Miric versus Smith*, Rot. 828. 2 Cr. 311. Hob. 76. Nugation.

In ejectment in the Common Pleas, where two declarations are used, the second is by way of recital; in the first declaration the day of the ejectment was omitted, but not so in the second: yet well. If a lease be made 1 Febr. 5 Jac. and so laid, and quod. postea, 1 Febr. 4 Jac. the ejectment was: this is good; and 4 Jac. void; and the word postea guides all, and agrees with the lease.

Judged and affirmed in error.

Superflua non nocent.

If the first declaration in the Common Pleas is vitious; and the second is as it ought to be; the first is not amendable in this case: for the first declaration is the foundation; and the second is only by way of recital.

CASE XLII. Mich. 10 Jac. *Oddington versus Dorly*. Error, B. R. Amendment. Nugation.

Ejectione firmæ against two; the declaration mentions that they intravit into the farm; and that they expulit inde (in the singular number) the plaintiff: judged amendable, affirmed in error. But where in ejectment or trespass, vi & armis is omitted; it † is not amendable: for the King is to have a fine upon the force being found.

Error scribentis nocere non debet.